Department of State
Division of Publications
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For Department of State Use Only

Sequence Number: 02-12-26
Rule ID(s): 10523
File Date: 2/10/2026
Effective Date: 5/11/2026

Rulemaking Hearing Rule(s) Filing Form

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission:	Department of State
Division:	Division of Business and Charitable Organizations
Contact Person:	Michael Harmon, General Counsel
Address:	600 Dr. Martin Luther King, Jr. Blvd, 1st Floor, State Capitol, Nashville, TN
Zip:	37243
Phone:	615-741-2819
Email:	Michael.Harmon@tnsos.gov

Revision Type (check all that apply):

___ Amendment
X New
___ Repeal

___ Content based on previous emergency rule filed on _____
___ Content is identical to the emergency rule

Rule(s) (**ALL** chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row.)

Chapter Number	**Chapter Title**
1360-07-04	Miscellaneous Databases
Rule Number	**Rule Title**
1360-07-04-.01	Miscellaneous Databases

Chapter 1360-07-04
Miscellaneous Databases

New

Rule 1360-07-04-.01 Miscellaneous Databases. The following fees apply to databases available for purchase from the Tennessee Secretary of State.

(1) Business Entity Database.

(a) Complete database $1,000

(b) Prior month $50

(c) Prior week $50

(2) Uniform Commercial Code Databases.

(a) UCC Database – complete database $1,000

(b) UCC Database – prior month $50

(c) UCC Database – prior week $50

(d) UCC Image Database – per week selected $125

(3) Trademark Database.

(a) Per month selected $50

(4) Motor Vehicle Database.

(a) Past one hundred (100) days $100

(5) Each party requesting a Business Entity database must swear under the penalty of perjury that it will not use, or knowingly allow another to use, any purchased database to market goods or services in a manner the implies that the person using or employing the purchased database is part of, or associated with, a unit of any governmental entity.

(6) The Division of Business and Charitable Organizations may prescribe, and shall furnish on request, a form that a party requesting a database must use for any purchase under this rule.

Authority: T.C.A. §§ 8-3-104(10), 47-25-517, 47-9-523, 48-11-401, 48-51-401, 48-247-201, and 55-3-126.

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)
N/A					

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Department of State on January 26, 2026, and is in compliance with the provisions of T.C.A. § 4-5-222.

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: November 5, 2025

Rulemaking Hearing Conducted on: January 8, 2026

Date: January 26, 2026

Signature:

Name of Officer: Michael T. Harmon

Title of Officer: General Counsel, Department of State

Agency/Board/Commission: Department of State

Rule Chapter Number(s): 1360-07-04

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

Jonathan Skrmetti
Attorney General and Reporter

February 9, 2026
Date

Department of State Use Only

Filed with the Department of State on: 2/10/2026

Effective on: 5/11/2026

Tre Hargett
Secretary of State

RECEIVED

Feb 10 2026, 1:31 pm

Secretary of State
Division of Publications

Public Hearing Comments

The Department of State held a public rulemaking hearing on this rule on January 8, 2026, at 312 Rosa L. Parks Avenue in Nashville, Tennessee. No public comments were submitted regarding this rule.

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-401 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

This rule does not affect small business.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

This rule has no projected financial impact on local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

(A) A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

Chapter 1360-07-04 sets out by rule the specific amounts that the Division of Business and Charitable Organizations of the Tennessee Department of State charges for certain items. These amounts are currently charged under the authority listed in the rule, but the Division believes it appropriate to set these fees by rule.

(B) A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

There is no mandate promulgating this rule. The Division believes it is appropriate to set the amounts by rule.

(C) Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

The Division of Business and Charitable Organizations currently charges the fees listed in this rule for the items provided. The Division believes it appropriate to publish the amounts of each fee by rule instead of policy. This rule does not affect those persons or organizations that purchase the items referenced in the rule because it does not change the current price. This rule might prevent those individuals or entities that misuse the data from a databases from purchasing the data in the future. No public comment was received from any party urging either adoption or rejection of the proposed rule.

(D) Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

There are no opinions of the Attorney General and Reporter or judicial rulings that directly relate to this rule or the necessity to promulgate this rule.

(E) An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

The Division believes that there will be no impact to state or local government revenues and expenditures resulting from the promulgation of this rule.

(F) Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Janet Kleinfelter, Director, Division of Business and Charitable Organizations, Department of State
Michael Harmon, General Counsel, Department of State

(G) Identification of the appropriate agency representative or representatives who will explain the rule at a scheduled meeting of the committees;

Janet Kleinfelter, Director, Division of Business and Charitable Organizations, Department of State
Michael Harmon, General Counsel, Department of State

(H) Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

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(l) Any additional information relevant to the rule proposed for continuation that the committee requests.

At the time of this filing, the committee has not requested additional information.